

A motion for leave to amend must identify by page, paragraph and line number any additions to and deletions from the prior pleading. (C.R.C. rule 3.1324(a)(2)-(3).) Further, the motion must be accompanied by a declaration and must specify: (1) the effect of the amendment; (2) why the amendment is proper and necessary; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the amendment was not made earlier. (C.R.C. rule 3.1324(b)(1)-(4).)

Here, Defendant did not specifically give information in compliance with CRC 3.1324 as to when the facts were discovered leading to the motion to file an amended answer or why that was not made earlier. However, sufficient information is provided as to the time line of events, and that, with the court finding an absence of prejudice, merits the granting of the motion.

Motion for Leave to File First Amended Answer GRANTED.

The proposed First Amended Answer attached as Exhibit 1 to Defendant's Motion shall be deemed filed and served as of the date of this Order.

Trial Setting Conference and Motion for Preference confirmed for 8.19.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508299	LARA-MARTINEZ VS UNIVERSAL CONSTRUCTION AND ENGINEERING, A CORPORATE ENTITY FORM UNKNOWN	MOTION TO STRIKE PORTIONS OF PLAINTIFF'S FIRST AMENDED COMPLAINT

Tentative Ruling: No tentative ruling.

If Plaintiff has filed an amended complaint, then motion is vacated and Case Management Conference continued to 10.05.26. If not filed, then Motion to Strike hearing is continued to 8.19.26 to address the merits of the motion and the Case Management Conference is continued to 8.19.26 as well.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2508778	TORRES VS COUNTY OF RIVERSIDE	HEARING ON MOTION FOR SUMMARY JUDGMENT ON COMPLAINT OF MARIA TORRES BY COUNTY OF RIVERSIDE, RIVERSIDE COUNTY SHERIFFS DEPARTMENT, OFFICER JESUS ENRIQUE MORALES-DAVILA

Tentative Ruling: The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Once the defendant has met its burden, the burden shifts to plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or defense thereto. (Code Civ. Proc. § 437c(p)(2).) To satisfy this burden, the plaintiff cannot rely upon the allegations or denials in its pleadings but